

**FICTIONAL TRAINING ARTIFACT — NOT FILED — NOT LEGAL
ADVICE**

UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF VIRGINIA
Richmond Division — Civil Action No. SYN-EDVA-25-CV-0412

BLUE CEDAR'S STATEMENT OF UNDISPUTED MATERIAL FACTS

Filed: October 27, 2025

Employment and protected activity

1. Blue Cedar Compliance, Inc. provides compliance-audit and regulatory-readiness services from its Richmond office. Leora Benton worked there from 2019 until March 24, 2025 and most recently held the position of senior compliance audit manager under Naomi Voss.
2. Benton planned audits, assigned field personnel, reviewed exceptions, coordinated remediation, and communicated with regulated clients. Tessa Wynn, Omar Ibarra, and Calvin Keene performed overlapping manager functions while carrying different portfolios and specialized assignments.
3. Benton sent Voss and Mira Solis a January 17 message asserting that recorded lead credit reflected a sex-based assignment pattern. Solis opened employee-relations matter ER-25-014. Benton filed an agency charge on February 3, and Blue Cedar received the agency notice February 10.
4. Solis routed the packet to Draven Pike. The system recorded a February 11 open event and reply, and Pike attended a February 12 meeting concerning preservation, assignment-score sources, staffing inputs, and response responsibility.
5. Blue Cedar treats the January opposition and agency participation as protected for purposes of its motion and does not dispute that termination was materially adverse.

Finance target and RIF population

6. Finance director Sable Finch supplied a target of \$612,000 in annualized payroll and employer-paid benefit savings. Blue Cedar opened the RIF workbook on February 14 and grouped positions according to functional overlap and coverage needs.
7. The covered population contained twenty-three authorized positions: twenty-one filled and two vacant. The approved B-7 scenario removed five filled positions and eliminated the two vacancies, leaving sixteen filled positions. The terminated occupants were Benton, an audit scheduling specialist, a controls documentation lead, a client onboarding analyst, and a vendor coordination specialist.
8. B-7 projected \$618,400 in annualized savings. Its component amounts were \$148,000, \$94,600, \$88,800, \$82,400, \$76,200, \$66,400, and \$62,000. The two vacancy amounts represented eliminated positions, not discharged employees.
9. Finance checked the arithmetic but did not direct which audit manager Pike should select. The written manager criteria were audit completion, client continuity, professional credentials, cross-region availability, and role uniqueness. Higher totals favored retention, while the model also required leadership to maintain active-client coverage.

Baseline and final manager scores

10. The February baseline listed Benton at 84 points: completion 27, continuity 22, credentials 14, availability 12, and role uniqueness 9. Her source records showed forty-seven of fifty audits closed on time, Northline and Oriole transitions scheduled through June, twenty-eight completed travel days, and current credentials.
11. Benton's final total was 68. During calibration, continuity changed from 22 to 14, availability from 12 to 6, and uniqueness from 9 to 7. Completion remained 27 and credentials remained 14. The version history retained both the imported and final values.
12. Wynn's imported total was 76 and final total 78. Ibarra's imported total was 73 and final total 78. Keene's imported total was 74 and final total 75. The workbook did not mechanically select an employee solely by numerical rank.
13. The calibration group met during March. Solis preserved versions and prepared a March 18 variance audit. Pike approved the final B-7 selection March 21 using the notation "approved—business continuity." Blue Cedar terminated Benton March 24; the workbook's April 1 date was the modeled payroll date rather than her termination date.

Retained-manager assignments and exceptions

14. Wynn owned the Lantern transition scheduled to finish May 30. Her continuity score increased from 20 to 22 under an exception referring to maintaining one owner through that transition. No recorded client communication required Wynn personally to remain.
15. Ibarra completed sixteen travel days in 2024 and sent Voss a February 27 message offering to accept additional second-quarter travel. His availability score increased from 9 to 14. The message expressed willingness subject to ordinary scheduling and did not report additional completed travel.
16. Keene maintained the reporting-script library. His role-uniqueness score increased from 14 to 15. The library was documented and accessible within the manager group; the calibration file contains no formal estimate of the time needed to transfer ownership.
17. Solis's variance audit identified the comparison between Benton's later transition dates and Wynn's continuity credit, between Benton's completed travel and Ibarra's future offer, and between Keene's automation exception and the absence of a transfer estimate. Solis certified formula reconciliation but did not certify that every comparison had been treated identically.
18. Each retained manager later received or continued work identified in the coverage plan.

Savings alternatives and final selection

19. The alternative-scenario worksheet used a nonmanager position base of \$470,400. Substituting Wynn for Benton yielded \$609,400 in position savings, substituting Ibarra yielded \$602,400, and substituting Keene yielded \$598,400.
20. A separately modeled archive-hosting consolidation supplied \$14,600 in expense savings. Including that amount raised the three alternatives to \$624,000, \$617,000, and \$613,000. Each total exceeded the \$612,000 target. Benton was therefore not mathematically required to meet the target.
21. Each alternative retained Benton, so Northline, Oriole, and her remediation-quality work remained with her. C-4 selected Wynn and required reassignment only of Wynn's Lantern duties; D-2 selected Ibarra and required reassignment only of Ibarra's planned western travel; and E-3 selected Keene and required transfer only of Keene's automation and reporting-script responsibilities. Operations rejected them for continuity, summer travel coverage, and automation support, respectively.
22. Pike had final selection authority. Finch verified calculations, Solis maintained the record and raised compliance questions, and Voss proposed adjustments and described potential transfers. Pike approved B-7 after reviewing the scenarios. His stated reason was the combination of savings and business continuity, and the record contains no directive from finance requiring Benton's selection.

Termination, redistribution, and explanation records

23. The March 24 termination letter stated that Blue Cedar needed payroll savings and would redistribute Benton's management responsibilities. It described the action as nondisciplinary and said Benton remained eligible for rehire. The termination register records performance action "none."
24. On March 25, Voss assigned Northline to Wynn, Oriole to Ibarra, the remediation-review queue to Keene, and the monthly quality meeting to herself. The clients and review work remained active, and Blue Cedar did not create a replacement audit-manager position during the period shown in the organization records.
25. Blue Cedar's April agency response referred to savings, role redundancy, relative completion, and availability. Pike's July custodian interview also used client confidence when describing continuity. Voss identified no contemporaneous client complaint about Benton, whose performance review remained positive.
26. The written manager criteria already included completion, continuity, and availability before termination. The parties dispute whether the later descriptions merely elaborated the initial savings-and-redistribution reason or instead weakened it. Blue Cedar includes the dated statements as separate records rather than treating any later wording as if it appeared in the March 24 letter.

Discovery completion and source authentication

27. The Court's scheduling order closed fact discovery October 10. Before that date, the parties served initial disclosures and took the depositions of Benton, Pike, Solis, Wynn, Ibarra, Voss, and Blue Cedar's designated representative. The company produced the native workbook information, version history, policy, scorecards, minutes, communications, metrics, organization records, and headcount materials discussed in its motion.
28. Blue Cedar authenticates those productions as materials collected from the employee-relations drive, finance planning folder, operations team site, AuditBridge database, mail and calendar exports, travel schedules, training register, and identified custodians. Authentication does not concede that every statement is admissible for every purpose or that the parties agree about its meaning.
29. Witnesses distinguished personal observation from information learned through produced records. Solis testified both individually and, on October 9, as Blue Cedar's prepared corporate representative. The company corrected the packet-open date to February 11, the related meeting date to February 12, and the distinction between Benton's March 24 termination and the April 1 payroll-model date.
30. Blue Cedar submits that these facts establish the record material to its motion while preserving Benton's right to dispute reasonable inferences and legal consequences.